

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                              |                                    |                                                        |                                               |                                 |
|---------------------------------------------------|------------------------------------------------------------------------------|------------------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Benjamin Wurtzel                 | Team:<br>Squad #02                                                           | CCRB Case #:<br>201606860          | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                              |                                    | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 07/15/2016 1:00 PM    | Location of Incident:<br>Ruben's Snacks and More (236 West 135th Street)     | 18 Mo. SOL<br>1/15/2018            | Precinct:<br>32                                        |                                               |                                 |
| Date/Time CV Reported<br>Wed, 08/10/2016 12:23 PM | CV Reported At:<br>CCRB                                                      | How CV Reported:<br>Phone          | Date/Time Received at CCRB<br>Wed, 08/10/2016 12:23 PM |                                               |                                 |
| <b>Complainant/Victim</b>                         | <b>Type</b>                                                                  | <b>Home Address</b>                |                                                        |                                               |                                 |
|                                                   |                                                                              |                                    |                                                        |                                               |                                 |
| <b>Witness(es)</b>                                | <b>Home Address</b>                                                          |                                    |                                                        |                                               |                                 |
|                                                   |                                                                              |                                    |                                                        |                                               |                                 |
| <b>Subject Officer(s)</b>                         | <b>Shield</b>                                                                | <b>TaxID</b>                       | <b>Command</b>                                         |                                               |                                 |
| 1. POF Kerin Donahue                              | 10307                                                                        | 954746                             | 032 PCT                                                |                                               |                                 |
| <b>Witness Officer(s)</b>                         | <b>Shield No</b>                                                             | <b>Tax No</b>                      | <b>Cmd Name</b>                                        |                                               |                                 |
| 1. POF Derika Graham                              | 04350                                                                        | 934955                             | 032 PCT                                                |                                               |                                 |
| 2. POM Richard Hanson                             | 20219                                                                        | 954916                             | 032 PCT                                                |                                               |                                 |
| <b>Officer(s)</b>                                 | <b>Allegation</b>                                                            | <b>Investigator Recommendation</b> |                                                        |                                               |                                 |
| A . POF Kerin Donahue                             | Discourtesy: Police Officer Kerin Donahue spoke discourteously to § 87(2)(b) | A . Substantiated                  |                                                        |                                               |                                 |
| B . POF Kerin Donahue                             | Abuse: Police Officer Kerin Donahue threatened to arrest § 87(2)(b)          | B . Substantiated                  |                                                        |                                               |                                 |

### Case Summary

On July 15, 2016, at approximately 1:00 p.m., § 87(2)(b) entered Ruben's Snacks and More – located adjacent to the 32<sup>nd</sup> Precinct – at 236 West 135th Street in Manhattan. Police Officer Kerin Donahue of the 32<sup>nd</sup> Precinct was inside of the store and allegedly said, "Fuck you," to § 87(2)(b) without provocation (**Allegation A**). § 87(2)(b) followed Police Officer Donahue out of the store and Police Officer Donahue warned § 87(2)(b) that she could be arrested if she did not step away from her (**Allegation B**). No arrests were made or summonses issued.

Video does not exist of this incident.

### Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation for this case, § 87(2)(b). On September 1, 2016, an inquiry was sent to the Comptroller's Office of the City of New York to determine whether a Notice of Claim was filed for this incident. The response will be added to the case file upon receipt (Board Review 01). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one prior complaint with the CCRB. (Board Review 03).
  - § 87(2)(b)
- Police Officer Donahue has been a member of the NYPD for three years and has no prior CCRB complaints (Board Review 04).

### Findings and Recommendations

#### Explanation of Subject Officer Identification

§ 87(2)(b) described the subject officer as a white female in her mid-30s, approximately 5'7" tall, with a large build, green eyes, and blonde hair. § 87(2)(b) stated that that she learned this officer's name was 'Donahue' from a desk officer at the stationhouse one week later. Police Officer Donahue is a § 87(2)(b)-old, white female with light brown hair and blue eyes.

§ 87(2)(b) identified Police Officer Donahue's partner as a Hispanic male. Police Officer Donahue and Police Officer Richard Hanson of the 32<sup>nd</sup> Precinct, a Hispanic male, were working together on this day and were the only Hispanic male and white female partners working together during tour two on the incident day. While Police Officer Donahue did not acknowledge the existence of this encounter, Police Officer Hanson expressed awareness of the interaction involving Police Officer Donahue and § 87(2)(b) having occurred. § 87(2)(g)

**Allegation A -Discourtesy: Police Officer Kerin Donahue spoke discourteously to** § 87(2)(b)

**Allegation B – Abuse of Authority: Police Officer Kerin Donahue threatened to arrest**

§ 87(2)(b) On August 10, 2016, § 87(2)(b) provided a telephone statement to the CCRB. On August 11, 2016, § 87(2)(b) was interviewed at the CCRB. On August 10, 2016, § 87(2)(b) § 87(2)(b)

§ 87(2)(b), provided a telephone statement to the CCRB. On August 22, 2016, Police Officer Donahue was interviewed at the CCRB. On August 30, 2016, Police Officer Derika Graham of the 32<sup>nd</sup> Precinct and Police Officer Hanson were interviewed at the CCRB.

§ 87(2)(b) alleged that Police Officer Donahue said, “Fuck you,” to her without provocation as she entered Ruben's Snacks and More, which is located beside the 32<sup>nd</sup> Precinct stationhouse. § 87(2)§ 87(2)(b) further stated that Police Officer Donahue threatened to arrest her when § 87(2)(b) followed her to her police vehicle to ask her why she cursed at her. § 87(2)(b) § 87(2)(b) confirmed that there was a verbal interaction between § 87(2)(b) and Police Officer Donahue, though he did not know what Police Officer Donahue said to § 87(2)(b) § 87(2)(b) confirmed that § 87(2)(b) followed Police Officer Donahue outside following the verbal interaction inside the store. § 87(2)(b) stated that § 87(2)(b) told him subsequently that Police Officer Donahue called her a “bitch.”

Police Officer Donahue, who was interviewed approximately one month after this incident allegedly occurred, denied that this interaction occurred and stated that she did not know who § 87(2)§ 87(2)(b) was. Police Officer Donahue did not know whether she went to Ruben's Snacks and More on the incident date and denied speaking discourteously to or threatening to arrest a civilian in the vicinity of her stationhouse on the incident date. Police Officer Hanson stated that he was aware of some form of verbal confrontation between Police Officer Donahue and another individual on the incident date but that he did not witness it and did not know any additional details. Police Officer Graham confirmed that § 87(2)(b) approached her inside of the stationhouse, stating that she wanted to make a complaint against a white, female police officer. Police Officer Graham did not speak to the civilian further and did not know the details of her complaint.

Patrol Guide Procedure 203-09 dictates that an officer must be courteous and respectful when interacting with members of the public (Board Review 05).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that

**Allegations A and B be substantiated.**

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Squad: 2

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date